

Australia's social media age limit being copied overseas

More countries are trying to make 16 years of age the new standard.

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Other countries have sought to copy Australia's under 16s social media ban. Photo: Shutterstock

Banning under-16s from social media has been contemplated worldwide and legally blocked in many jurisdictions, but the success of Australia's laws is emboldening overseas legislators to keep trying as concern over social media harms grows.

New Zealand, for its part, has taken up [Australia's cause](#), with Prime Minister Christopher Luxon this month announcing a draft law that would fine social media firms up to \$1.85 million (\$NZ2 million) if they fail to verify that users are at least 16 years old.

US states are also cracking down, with Virginia governor Glenn Youngkin this month [signing](#) into law [SB854](#), an amendment to that state's Virginia Consumer Data Protection Act (VCDPA) that significantly restricts under-16s' social media use.

From 1 January 2026, the legislation requires social media firms to use "commercially reasonable methods... to determine whether a user is a minor younger than 16 years of age" and restrict such minor's use to one hour per day unless parents consent to more.

Social media firms can't use age verification-related data for other purposes, and must treat users as a minor "if the user's device communicates or signals" their age as under 16 via browser plugin, privacy setting, device setting, "or other mechanism".

Fighting an uphill battle

Australia's success in legislating an outright ban has gained worldwide attention – one New York University expert [called it](#) a "momentous step" that made Australia a "global leader in protecting kids online" – but US states have found similar efforts tough going.

Given that social media platforms are already prohibited by the US COPPA legislation from having users 13 or younger, legal analysts have already [flagged](#) challenges as the law's distinction between 'child' and 'minor' creates a new class of users aged 14 to 16.

Virginia's law as passed was itself a compromise, with Youngkin [asking](#) state legislators in March to strengthen protections by raising the covered user age from 16 to 18, and to disable 'infinite scroll' features and auto-playing videos without parental consent.

Constitutional free-speech challenges have further complicated the situation: although dozens of states have [legislated](#) age verification

and/or parental consent requirements, social media lobbyists have secured injunctions against many of them.

In September, industry lobbyist group NetChoice – which represents Meta, Google and TikTok under the guise of supporting free speech – successfully sued and convinced a federal judge to [block](#) a Utah age verification measure as likely unconstitutional.

State officials had not, judge Robert Shelby [wrote](#), “provided evidence establishing a clear, causal relationship between minors’ social media use and negative mental health impacts” and had “only demonstrate[d] parents are unaware of parental controls.”

[Similar action](#) has caused the failure of age verification measures in Colorado, West Virginia, Nevada, Florida, New Mexico and North Dakota this year alone – although South Dakota, Wyoming, Mississippi, and a revised law in North Dakota have passed.

Riding a wave of public support

Virginia’s social media crackdown isn’t a complete ban like in Australia and New Zealand, but it stakes out a growing middle ground that legislators hope will appease courts that can anticipate constitutional challenges to every restriction that’s enacted.

Yet there is broad public support for such measures: a recent poll [found](#) that 68 per cent of New Zealand voters support restrictions like Australia’s – close to the 71 per cent of US adults that, the Pew Research Center found, [support](#) age verification rules.

Just one in 10 US adults oppose age restrictions on social media use, Pew found, with 69 per cent supporting time limits on young people’s use of social media.

Even teenagers are onboard, with 56 per cent agreeing that age verification should be mandatory.

Other countries have also seized on growing public support: France, for example, legislated in 2023 to require parental consent for social media

users under-15 years, while Norway has advocated a similar limit and UK politicians are still vacillating.

Experience so far suggests that the key to broader global support for age restrictions lies in finding the right combination of measures that will pass legal scrutiny and enact meaningful change at the same time.

Yet with the world watching, Australia's success to date – with bipartisan support that survived a contentious federal election intact – now hinges on the success of [age verification trials](#) and, ultimately, confirmation that age restrictions work as intended.



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